

SPECTLINE TERMS AND CONDITIONS

These Terms and Conditions govern the ordering and provision of Spectline's creative services, including VFX, 2D and 3D animation, 3D production, motion design, editing, post-production and related visual deliverables. A specific quotation, order or contract may supplement or amend these Terms.

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1. Scope and application

These Terms apply to services provided by Spectline to clients acting as businesses, legal entities or consumers.

The contractual relationship consists primarily of the accepted quotation, confirmed order, project brief, schedule, any separate agreement and these Terms.

If the documents conflict, an individually agreed contract or quotation takes precedence over these general Terms.

2. Provider and contact details

The services are provided and the contract is entered into by the entity identified below.

- Legal name / name: Spectline
- Registered office / address: Spišská Nová Ves
- Country: Slovak Republic
- Email: info.spectline@gmail.com
- Website: spectline.com

3. Definitions

For the purposes of these Terms:

- "Provider" means Spectline or the legal entity identified in Section 2.
- "Client" means the person or entity ordering the Provider's services.
- "Project" means the agreed scope of creative, production or post-production work.
- "Brief" means the instructions, materials, technical requirements, references and objectives supplied by the Client.
- "Deliverable" means a final file, animation, video, image, 3D model, composition, graphic or other Project result intended for delivery.
- "Working Files" means source, project, editable or intermediate files used during production.
- "Revision" means a reasonable adjustment to an existing proposal within the originally agreed Brief.

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4. Quotation, order and formation of contract

An enquiry submitted through the website, by email or through another channel is not automatically a binding order.

Based on an enquiry, the Provider may prepare a quotation, estimate, schedule or proposed scope. A quotation remains valid for the period stated in it; where no period is stated, it remains valid for a reasonable period considering the nature of the Project.

A contract is formed when the Provider confirms the order, the Client accepts the quotation in writing, the parties sign a contract or the Client pays the agreed deposit, whichever occurs first and clearly demonstrates the parties' intention to contract.

- The Provider may decline an order for capacity, technical, legal or ethical reasons.
- Oral agreements and changes become binding only after written confirmation, including confirmation by email.

5. Project scope and Client cooperation

The Project scope is based on the accepted quotation, Brief and subsequently confirmed changes. The Provider will perform the work professionally and in accordance with the agreed creative and technical direction.

The Client will provide complete, accurate and usable materials, feedback, approvals, access and decisions required to perform the Project on time.

- The Client is responsible for the accuracy of text, names, data, logos, captions, translations and other information supplied or approved by the Client.
- A delay in Client cooperation will reasonably extend deadlines and may affect the price or reserved production capacity.
- If the Client remains unresponsive for an extended period, the Provider may suspend the Project and propose a revised schedule.

6. Client materials and third-party rights

The Client represents that it holds all rights, licences, consents and permissions required for materials supplied to the Provider.

This includes music, video, photographs, fonts, logos, trademarks, 3D models, voice recordings, likenesses, personal data and other protected content.

- The Client is responsible for third-party claims arising from Client-supplied materials, except to the extent caused by the Provider's own breach.
- The Provider may refuse to use material that is manifestly unlawful, harmful or infringes third-party rights.

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7. Price, deposit and payment

Pricing is determined individually according to scope, complexity, timing, licence, number of revisions and required deliverables. The price stated in the accepted quotation or contract controls.

Unless agreed otherwise, the Provider may require a deposit of 50% of the estimated price before work begins. The standard invoice due date is 14 days unless the invoice or agreement specifies a different period.

- Prices are stated inclusive or exclusive of VAT as indicated in the quotation and according to the Provider's tax status.
- Bank fees, licence fees, stock assets, external suppliers, travel, rush delivery or other exceptional costs may be charged separately if approved in advance or required by a changed Brief.
- The Provider may suspend work or final delivery while the Client is overdue with payment.
- Statutory default interest and recovery costs apply only to the extent permitted by law.

8. Deadlines and schedule

Deadlines are binding when expressly confirmed as fixed. Otherwise, they are good-faith estimates based on information available when the Project is accepted.

The schedule begins once all required materials, approvals and any deposit have been received.

- Deadlines are reasonably extended by delayed feedback, changes in scope, additional work, technical obstacles, supplier outages or events outside the Provider's reasonable control.
- Rush or priority delivery may be subject to additional pricing and production availability.

9. Concepts, revisions and scope changes

Unless the quotation states otherwise, the price includes up to 2 rounds of reasonable revisions within the original Brief.

The Client will provide clear, consolidated feedback through the agreed contact. Conflicting instructions from multiple persons may suspend work until an authorised approver is identified.

- A change to the concept, style, script, duration, format, technical parameters, an already approved stage or the overall scope constitutes additional work.
- Additional work will proceed after the impact on price and timing is approved; email confirmation may be sufficient for minor changes.
- Unused revisions are not refundable and do not transfer to another Project unless agreed otherwise.

10. Approval and delivery

The Provider may supply watermarked, reduced-quality or working-format previews for review and approval.

Final Deliverables will be supplied using the agreed method and formats after payment conditions have been satisfied, unless the quotation or contract provides otherwise.

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10. Approval and delivery

- The Client will review Deliverables without undue delay and identify any specific defect or departure from the agreed Brief.
- A subjective change in taste after approval of the creative direction is not by itself a defect, but may be commissioned as additional work.
- Working Files or source files are not automatically included unless expressly listed in the quotation or contract.

11. Defects, complaints and remedies

The Client may report a demonstrable failure of a Deliverable to match the agreed Brief, technical specifications or binding approved requirements.

A complaint may be sent to info.spectline@gmail.com. It should identify the Project, describe the defect and where it occurs, state the requested remedy and include relevant evidence or files.

- The Provider will assess the complaint and propose an appropriate remedy, such as correction, completion, redelivery, a proportionate price reduction or another remedy required by law.
- Statutory consumer deadlines and rights apply and are not restricted by these Terms.
- A complaint does not cover errors caused by Client or third-party intervention, use in an unsupported environment, format conversion outside the agreed workflow or incorrect Client materials.

12. Copyright and licence

Copyright and other intellectual property rights in the Provider's work remain protected to the extent provided by law. The Client receives a licence or other right to use the Deliverables only within the scope agreed in the quotation or contract.

Where the licence scope is not expressly stated, it will be interpreted reasonably according to the Project's purpose, price, nature of the Deliverable and the intended use known to the Provider when the contract was formed.

- A licence may be limited by territory, duration, medium, purpose, campaign, number of uses or the right to modify or sublicense.
- The licence to final Deliverables takes effect after full payment unless the contract expressly provides otherwise.
- The Provider's workflows, know-how, templates, tools, libraries, scripts, reusable assets and general production components are not transferred unless agreed in writing.
- Rights in third-party materials are governed by their applicable licence terms and may be narrower than the licence to the Provider's original work.

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13. Portfolio, showreel and credit

The Provider may use publicly released final Deliverables or reasonable Project excerpts in its portfolio, showreel, social media, awards submissions and service presentations where this was agreed, follows from the circumstances of the engagement or is supported by another valid legal basis.

If the Project is confidential, embargoed or the Client objects to portfolio use before the contract is formed, the parties will agree an appropriate restriction or exclusion.

- The Provider will not disclose non-public business information, personal data or material it is not authorised to publish.
- Any reference to the Client's name or brand identifies the completed Project only and does not imply a partnership or endorsement of other services.

14. Subcontractors, stock assets and technology

The Provider may engage trusted subcontractors or suppliers while remaining responsible for managing its contractual performance within the agreed scope.

A Project may use licensed fonts, music, stock content, plugins, cloud services, render farms or other third-party technology.

- Third-party materials may be subject to separate licence, territory or time restrictions.
- Where generative or other AI tools are appropriate for a Project, the Provider will take account of agreed confidentiality, licensing and technical requirements. The Client may request that AI tools not be used; this may affect price or schedule.

15. Confidentiality and Project files

The parties will protect confidential information obtained during the engagement and use it only for the Project, legal compliance or the protection of their rights.

Information is not confidential where it became public without breach, was lawfully obtained from a third party or must be disclosed by law.

- The Provider is not required to retain Working Files or Project files indefinitely. The Client will maintain its own backup of final Deliverables after delivery.
- Long-term archiving, reopening an old Project or migrating Working Files may be chargeable and depends on technical availability.

16. Suspension, cancellation and termination

The Client may request suspension or cancellation of a Project. The Provider is entitled to payment for properly completed work, approved costs, purchased licences and reasonable non-refundable commitments incurred up to termination.

A cancellation fee or settlement method may be stated in the quotation or contract. Where none is stated, documented work performed and non-refundable costs will be invoiced.

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16. Suspension, cancellation and termination

- The Provider may suspend or terminate a Project for a material Client breach, overdue payment, prolonged failure to cooperate, unlawful instructions or a security risk.
- For a remediable breach, the Provider will give a reasonable opportunity to remedy it where circumstances permit.
- Termination does not grant rights to use unfinished or unpaid Deliverables unless agreed in writing.

17. Liability and force majeure

Each party is responsible for loss caused by its breach to the extent provided by applicable law and the contract.

The Provider is not liable for delay or non-performance caused by events outside its reasonable control, including major infrastructure outages, natural disasters, government action, war, civil unrest, epidemic or serious supplier failure, provided reasonable mitigation steps are taken.

- The Provider does not guarantee campaign performance, commercial success, audience figures or other business outcomes unless a specific measurable guarantee was expressly agreed.
- Nothing excludes liability that cannot lawfully be excluded or limited, or any mandatory consumer right.

18. Consumers and withdrawal from distance contracts

Where the Client is a consumer and the contract was concluded at a distance or away from the Provider's business premises, the Client may have a statutory right to withdraw without giving a reason, generally within 14 days after the service contract is concluded.

If the consumer expressly requests performance to begin before the withdrawal period expires, the consumer may have to pay a proportionate amount for services supplied before withdrawal. Once the service has been fully performed, the right of withdrawal may be lost where the statutory conditions, including prior express consent and acknowledgement, have been met.

- A withdrawal notice may be sent to info.spectline@gmail.com or made by another clear statement delivered to the Provider.
- This Section does not apply to business Clients and does not limit any mandatory consumer right.

19. Personal data protection

Personal data processing is governed by the separate Personal Data Protection (GDPR) notice available at spectline.com.

The Client will ensure that personal data contained in Project materials is supplied and used lawfully. Where the Provider processes personal data on the Client's behalf as a processor, the parties will enter into an appropriate data processing agreement where required.

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20. Complaints and alternative dispute resolution

The Client may send a question, complaint or request for redress to info.spectline@gmail.com. The parties will first seek to resolve disputes amicably.

A consumer dissatisfied with the response to a request for redress, or who did not receive a response within the statutory period, may apply to a competent alternative dispute resolution entity under applicable law, including the Slovak Trade Inspection where the matter falls within its authority.

21. Governing law and courts

The contractual relationship is governed by the laws of the Slovak Republic unless mandatory conflict-of-law rules provide otherwise.

The choice of Slovak law does not deprive a consumer of mandatory protections available under the law of the consumer's habitual residence where those protections apply.

If a dispute cannot be resolved amicably, it will be decided by the court having jurisdiction under applicable law.

22. Amendments and final provisions

The Provider may reasonably update these Terms, particularly following changes to services, processes or law. A Project will normally remain subject to the version effective when the contract was formed, unless the parties agree otherwise or a change is required by law.

If any provision is invalid or unenforceable, the remaining provisions remain effective. The invalid provision will be replaced by a lawful solution that most closely reflects its commercial purpose.

The English version is a translation of the Slovak version. If interpretations differ, the Slovak version prevails unless mandatory law requires otherwise.

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